

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #05	CCRB Case #: 202003901	☒ Force ☐ Discourt. ☒ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 06/03/2020 8:58 PM, Tuesday, 01/05/2021 10:43 AM	Location of Incident: Cadman Plaza West between Pierrepont Street and Montague Street; 100 Church Street	18 Mo. SOL 5/4/2022	Precinct: 84
Date/Time CV Reported Thu, 06/04/2020 3:01 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 06/04/2020 3:01 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Andrew Fitts	00977	938484	CD IRS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Victor Cardona	00446	934579	084 PCT
2. POM Patrick Sadowski	03558	961223	094 PCT
3. POM Christophe Bellore	05546	960227	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Andrew Fitts	Force: On June 3, 2020, at Cadman Plaza West between Pierrepont Street and Montague Street in Brooklyn, Sergeant Andrew Fitts shoved § 87(2)(b) with a baton.	A . Substantiated
B . SGT Andrew Fitts	Untruthful Stmt.: On January 5, 2021, at 100 Church Street in Manhattan, Sergeant Andrew Fitts provided a false official statement to the CCRB.	B . Substantiated
§ 87(2)(g), § 87(2)(i)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On June 4, 2020, § 87(2)(b) filed this complaint on the CCRB website (**Board Review 01**). § 87(2)(b) was not present for the incident and happened to see it occurring on live footage in the background during a CNN news broadcast. On June 4, 2020, § 87(2)(b) the General Counsel for § 87(2)(b) filed a duplicate complaint with the NYPD, the Mayor's Office, and the Governor (**Board Review 02**), generating IAB original log number § 87(2)(b) (**Board Review 03**). § 87(2)(b) also was not present for the incident and filed the complaint on behalf of the victim, § 87(2)(b) photojournalist § 87(2)(b). On June 24, 2020, IAB forwarded § 87(2)(b) complaint to the CCRB.

On June 3, 2020, at approximately 8:58 p.m., on Cadman Plaza West between Pierrepont Street and Montague Street in Brooklyn, Sergeant Andrew Fitts of the Chief of Department Investigative Review Section shoved § 87(2)(b) with his baton while knocking him to the ground (**Allegation A: Force, substantiated**). On January 5, 2021, at approximately 10:43 a.m., at 100 Church Street in Manhattan, Sgt. Fitts subsequently provided a false official statement about the incident to the CCRB (**Allegation B: Untruthful Statement, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

The investigation obtained video footage of this incident from a CNN news broadcast (**Board Review 04**) and from two bystanders, § 87(2)(b) and § 87(2)(b) who filmed it with their cellphones (**Board Review 05-06**).

The CCRB marked this case as sensitive on July 8, 2020. On July 15, 2020, this case was reassigned from Inv. Andrew Ridge to SI Julian Phillips, after Inv. Ridge's departure from the agency.

This investigation was delayed by the COVID-19 global pandemic, issues with remote MOS interviews, delays in obtaining important NYPD documents and BWC footage, the NYPD's overall lack of documentation regarding its deployment of officers at the protests on the night of the incident, and the fact that it was necessary to interview Sgt. Fitts twice.

Explanation of Subject Officer Identification

As will be noted below, Sgt. Fitts testified that he did not recall this incident and did not know whether he was the officer who used force against § 87(2)(b). The investigation used various evidence to identify him as the subject officer.

First, it should be noted that § 87(2)(b) misidentified the subject officer in her written complaint. § 87(2)(b) stated that she had identified the officer as "Officer Bellore" (subsequently identified as Police Officer Christopher Bellore, then assigned to the 122nd Precinct and currently assigned to Patrol Borough Staten Island Specialized Units). § 87(2)(b) apparently concluded that PO Bellore was the subject officer because he appeared standing directly over § 87(2)(b) in a photograph that § 87(2)(b) shot from the ground after he was knocked down. The video footage of the incident showed, however, that although PO Bellore was also approaching § 87(2)(b) at the time of this incident, he was not the officer who used force against § 87(2)(b).

As noted above, the investigation obtained three video clips depicting this incident: the CNN news footage (**Board Review 04**; from 00:50 through 01:00), § 87(2)(b) cellphone footage (**Board Review 05**; from 00:26 through 00:40), and § 87(2)(b) cellphone footage (**Board Review 06**;

from 00:00 through 00:09). The footage shows that a group of officers, including the subject officer, was moving southbound and clearing civilians off of a sidewalk on the west side of Cadman Plaza West. § 87(2)(b) was on this sidewalk and moving backwards, away from the advancing officers. The subject officer rushed § 87(2)(b) from behind and shoved him to the ground with his baton before immediately leaving the scene by walking east into the street on Cadman Plaza West.

See **Board Review 26 & 28** for cropped versions of the CNN footage and § 87(2)(b) footage, which further isolate the use of force. See **Board Review 27 & 29** for versions of those clips which are slowed down to half-speed. See **Board Review 25** for a screenshot of the subject officer immediately after he struck § 87(2)(b) with his baton.

The footage documented that the subject officer was a light-skinned man who wore a standard NYPD riot helmet with a shield number on its sides. The helmet number was not legible in the footage, but it appeared to consist of at least four digits. The helmet's visor was lowered at the time of the incident. The subject carried the straight baton used by officers specifically in disorder control situations, as opposed to the expandable ASP baton. He wore a long-sleeved blue uniform with shoulder chevrons, designating the rank of sergeant, and two or three forearm tenure stripes, each of which represents five years' service in the NYPD. He wore dark-colored gloves, he had a mourning band across the middle of his shield, and he appeared to have a medal plate for medal bars above his shield. Based upon a portion of video footage where the subject stood beside PO Bellore, the investigation assessed that he was approximately 5'6" to 5'10" tall. The subject officer's build in the footage appeared to be average or a little heavyset. Neither the subject sergeant's shield number nor his face were visible in the footage.

Using the video footage, the investigation identified three officers who were present in the vicinity when the subject officer knocked down § 87(2)(b) PO Bellore, Detective Victor Cardona of the 84th Precinct, and Police Officer Patrick Sadowski of the 94th Precinct. The investigation interviewed all three officers, all of whom testified that they could not identify the subject sergeant. The investigation also interviewed Chief Jeffrey Maddrey of Patrol Borough Brooklyn North, who was the highest-ranking officer on scene on the night of the incident. Chief Maddrey also testified that he could not identify the subject sergeant in this case.

The investigation conducted an extensive review of all photographs and video footage obtained by the CCRB in numerous complaints filed about incidents during the protest at Cadman Plaza that night (CCRB cases 202004586, 202003873, 202004702, 202004395, 202003921, 202003966, 202004165, 202003911, 202004003, 202004110, 202003932, and 202004569). Collectively, the photos and videos showed that there were relatively few officers wearing long-sleeved uniforms that night at Cadman Plaza, and there were very few sergeants with long sleeves. The investigation could find only two such male sergeants among the videos and photographs. Using the shield numbers on their helmets, the investigation identified these two sergeants as Sgt. Fitts and Sergeant Victor Velez of the 42nd Precinct. The investigation interviewed Sgt. Velez (**Board Review 07**) and ultimately determined that he was not the subject, as contemporaneous video footage (**Board Review 08**) showed that he was not wearing gloves or a medal plate on his uniform at the time of this incident. Conversely, cellphone footage (**Board Review 10**, see relevant screenshot at **Board Review 30**) from shortly after the use of force showed Sgt. Fitts standing in the street on Cadman Plaza West, roughly in the area to which the subject officer walked after knocking § 87(2)(b) down. Moreover, the footage showed that Sgt. Fitts was wearing a long-sleeved uniform and black gloves, that he had two tenure stripes on his forearm, that he wore a standard riot helmet bearing a five-digit shield number, that his visor was lowered, that he had a black mourning band across the middle of his shield, and that he had a medal bar above his shield. In addition, Sgt. Fitts' pedigree

information (**Board Review 09**) showed that he had a height and build consistent with the subject officer seen in the video footage. Sgt. Fitts confirmed in his interview that he carried a disorder control straight baton during the incident.

Sgt. Fitts was interviewed twice by the CCRB, and he confirmed that he was present at Cadman Plaza at the time of this incident (**Board Review 11-12**). As will be discussed in greater detail below, he initially denied using any physical force at Cadman Plaza, but later testified that he was unsure whether he was the subject officer seen in the footage. He eventually claimed that he could not recall whether he used any physical force at Cadman Plaza, and that he could not deny that he was the subject officer owing to his lack of recollection. Sgt. Fitts did not identify any discrepancies between the appearance of the subject sergeant and himself, and he provided inconsistent and nonsensical testimony while refusing to positively identify himself in the photograph described above (**Board Review 30**).

Based upon the numerous similarities between the appearance of the subject officer and Sgt. Fitts' appearance at the time of the incident, and upon the video footage showing Sgt. Fitts standing in the same area to which the subject officer walked after the incident, and finally upon Sgt. Fitts' inconsistent testimony and his failure to deny that he was the subject officer, the investigation determined that he was the officer who used force against § 87(2)(b).

Findings and Recommendations

Allegation (A) Force: On June 3, 2020, at Cadman Plaza West between Pierrepont Street and Montague Street in Brooklyn, Sergeant Andrew Fitts shoved § 87(2)(b) with a baton

§ 87(2)(b) declined, through § 87(2)(b) to be interviewed about this incident by either the CCRB or IAB. § 87(2)(b) provided an account of the incident in two lengthy letters, based on information she apparently obtained from § 87(2)(b) (**Board Review 02, Board Review 13**). § 87(2)(b) wrote that § 87(2)(b) was wearing a marked vest and press pass and carrying other equipment identifying him as a member of the press, and he was standing behind a police line photographing the arrests of multiple demonstrators. An officer ordered § 87(2)(b) to "get out of here." Although § 87(2)(b) moved in response to the order, the officer approached § 87(2)(b) and shoved him to the ground with his baton.

§ 87(2)(b) complaint contained further allegations that the officer who shoved § 87(2)(b) to the ground also kicked him in the leg and struck him in the helmet with a baton. There is no evidence of these additional uses of force in the video footage, § 87(2)(b) never testified to the investigation, and the witnesses who did provide statements did not recount seeing them. As a result, these additional allegations are not pleaded.

§ 87(2)(b) provided redacted medical records documenting § 87(2)(b) subsequent visit to an urgent care center (see Privileged Records). § 87(2)(b) reported that he was pushed to the ground and kicked, and that he hit his head but did not have a headache or neck pain. § 87(2)(a) – PHL

§ 87(2)(b) testified that she observed a line of officers moving forward down the block (**Board Review 14**). § 87(2)(b) was in front of these officers and was facing them and photographing them while moving backwards at the same speed as they were advancing. Sgt. Fitts exited the line of officers, approached § 87(2)(b) and used his baton to shove § 87(2)(b) to the ground. § 87(2)(b) testified that she observed § 87(2)(b) standing apart from the protestors and speaking to a group of officers for approximately one minute (**Board Review 15**). Abruptly, as § 87(2)(b)

§ 87(2)(b) was raising his camera, Sgt. Fitts shoved § 87(2)(b) with his baton to the ground.

As noted above, the investigation obtained three video clips depicting this incident: the CNN news footage (**Board Review 04**; from 00:50 through 01:00; **Board Review 26** for cropped version, **Board Review 27** for half-speed version), § 87(2)(b) cellphone footage (**Board Review 05**; from 00:26 through 00:40; **Board Review 28** for cropped version, **Board Review 29** for half-speed version), and § 87(2)(b) cellphone footage (**Board Review 06**; from 00:00 through 00:09).

The footage is largely consistent with the statements of § 87(2)(b) and § 87(2)(b). The footage shows that a group of officers, including Sgt. Fitts, was moving southbound and clearing civilians off of a sidewalk on the west side of Cadman Plaza West. § 87(2)(b) was on this sidewalk and moving backwards, away from the advancing officers. Sgt. Fitts rushed § 87(2)(b) from behind and shoved him to the ground with his baton before immediately leaving the scene by walking east into the street on Cadman Plaza West. The footage also shows that § 87(2)(b) was wearing a helmet and carrying multiple large, professional cameras.

Sgt. Fitts was interviewed twice by the CCRB (**Board Review 11-12**). As will be discussed further below, Sgt. Fitts testified that he did not recall this incident. Sgt. Fitts initially denied using any physical force at Cadman Plaza and specifically denied shoving § 87(2)(b) to the ground with his baton. However, after being shown video footage of the incident, Sgt. Fitts testified that he did not recall whether he shoved § 87(2)(b) to the ground with his baton, and he testified that he could not deny that he was the subject officer owing to his lack of recollection.

As described above, the investigation did not credit Sgt. Fitts' testimony and determined that he was the officer captured on video using force against § 87(2)(b).

Patrol Guide Procedure 221-01 (Board Review 16) states that officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances and not excessive.

§ 87(2)(g) The video footage shows that § 87(2)(b) was simply walking on a public sidewalk and photographing a public demonstration, and he had his back turned to Sgt. Fitts when Sgt. Fitts struck him. Moreover, § 87(2)(b) was evidently a member of the press. Sgt. Fitts was not attempting to place § 87(2)(b) into custody or prevent his escape from custody, § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) On January 5, 2021, at 100 Church Street in Manhattan, Sergeant Andrew Fitts provided a false official statement to the CCRB

There is evidence that Sgt. Fitts provided a false official statement to the CCRB.

In his first interview with the CCRB on **January 5, 2021** (Board Review 11), Sgt. Fitts initially testified that he did not shove § 87(2)(b) to the ground as alleged. The following is a verbatim

transcription of Sgt. Fitts's interview from 23:05 through 23:55:

CCRB Investigator: "Specifically, for the record, did you participate in moving any civilians off of a sidewalk and into a larger crowd of civilians?"

Sgt. Fitts: "Not that I remember."

CCRB Investigator: "The victim in this case, the victim of the physical force is a white male, kind-of a heavy build, wearing khaki cargo pants and carrying several large cameras to take photographs. Do you remember seeing any civilian by that description at Cadman Plaza?"

Sgt. Fitts: "No."

CCRB Investigator: "The specific allegations, Sergeant, are that you used your baton to push a civilian of that description down to the ground. Did you do that?"

Sgt. Fitts: "No."

When subsequently shown video footage of the incident, Sgt. Fitts testified, however, that he now could not say whether he was the sergeant who shoved § 87(2)(b) in the footage. The following is a verbatim transcription of Sgt. Fitts's interview from 26:50:

CCRB Investigator: "After reviewing that video, are you able to say any more definitely whether the sergeant I showed you screenshots of and who appears in that video is you?"

Sgt. Fitts: "No."

CCRB Investigator: "Okay, so you're still not sure. After seeing this video, does this refresh your recollection as to whether you pushed a guy to the ground at Cadman Plaza?"

Sgt. Fitts: "No."

In his second CCRB interview on *April 27, 2021* (Board Review 12), Sgt. Fitts reiterated that he could not say whether he was the sergeant visible shoving § 87(2)(b) to the ground in the footage. Sgt. Fitts testified that he did not recall whether he used his baton to shove § 87(2)(b) to the ground. The following is a verbatim transcription of Sgt. Fitts's interview from 39:35 through 39:45:

CCRB Investigator: "Is the officer seen in this video shoving this man to the ground, is that you?"

Sgt. Fitts: "I don't know. Based on that, I can't tell who that is."

And in the same interview, from 45:56 through 47:20:

CCRB Investigator: "I just want to clarify one thing Sergeant. Setting the video aside for a second, the last time we spoke, when I initially asked you about the allegations in this case, whether you pushed a guy to the ground with your baton and then kicked him and hit him with your baton on the ground, you initially said that you didn't do that, that was something you definitely didn't do. I want to confirm: are you still denying that you shoved anyone to the ground with a baton, or are you now saying now that you viewed the footage you can't say for sure, because you can't recall whether or not you used any physical force at the scene."

Sgt. Fitts: "Based on the videos, I don't know, I don't remember using force."

CCRB Investigator: "So, just to be sure, you're not testifying at this time that you definitely didn't use the particular force alleged, of a civilian being shoved to the ground with a baton?"

Sgt. Fitts: "Based on what you just showed me, I don't know, I don't remember using force."

CCRB Investigator: "Not necessarily based on what we just showed you, Sergeant. Based on your memory of the incident, is your testimony that you don't recall using force, or that you definitely didn't use this particular form of force of shoving someone to the ground with a baton?"

Sgt. Fitts: "I don't remember using force."

Patrol Guide Procedure 203-08 categorically prohibits officers from intentionally making a false official statement, which is defined as: "An intentional statement that a member of the service

knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made.” A material fact is defined as: “A significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. It is a fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. A material fact may be distinguished from an insignificant, trivial, or unimportant detail.” Statements made during an official CCRB interview are covered by this Procedure (**Board Review 24**).

Patrol Guide Procedure 203-08 further states, “When a member of the service is afforded an opportunity to recollect with the benefit of credible evidence, and the member makes a statement consistent with the evidence, the member’s prior statement will not be considered a false statement.” The NYPD will not bring false official statement charges when, “as opposed to creating a false description of events, the member of the Department merely pleads not guilty in a criminal matter, or merely denies a civil claim or an administrative charge of misconduct.”

In his initial testimony in his first CCRB interview, Sgt. Fitts § 87(2)(g) he categorically denied that he used force against anyone at Cadman Plaza and specifically denied knocking § 87(2)(b) to the ground. § 87(2)(g)

He was first interviewed only six months after the incident, and he reviewed video evidence which would have refreshed his recollection if he had genuinely forgotten the incident. Finally, when presented with this credible video evidence, Sgt. Fitts did not change his testimony such that it was consistent with the evidence—he merely changed his testimony from a clear denial to a claim that he could not recall if he committed the action seen in the footage.

§ 87(2)(g) It is therefore recommended that **Allegation B** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) or § 87(2)(b) has been party (**Board Review 17-19**).
- Sgt. Fitts has been a member of the NYPD for 16 years and has been a subject in two CCRB complaints and two allegations, neither of which was substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of September 28, 2020, the New York City Office of the Comptroller has no record of a notice of claim being filed regarding this complaint (**Board Review 20**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 5

Investigator:	<u>DG</u> Signature	<u>IM Giansante for SI Phillips</u> Print Title & Name	<u>September 11, 2021</u> Date
Squad Leader:	<u>Daniel Giansante</u> Signature	<u>IM Daniel Giansante</u> Print Title & Name	<u>September 11, 2021</u> Date
Reviewer:	 Signature	 Print Title & Name	 Date